

PAPINI VS. PAPINI**CASE NUMBER: 24CV-0205898**

Tentative Ruling on Order to Show Cause Re: Contempt: An Order to Show Cause Re: Contempt (“OSC”) issued on September 21, 2026, to Sherri Papini for failure to comply with this Court’s December 26, 2025 Order granting Plaintiff’s Motion to Compel Answers to Form Interrogatories, and Response to Request for Production of Documents, and Request for Sanctions. Proper proof of personal service of the OSC is on file. No response to the OSC has been filed.

The elements that support punishment for contempt are (1) a valid court order; (2) the alleged contemnor’s knowledge of the order; and (3) noncompliance. *In Re Marcus* (2006) 138 Cal.App.4th 1009. An individual may be held in contempt of court for “disobedience of any lawful judgment, order, or process of the court.” CCP §1209(a)(5). If, after investigation and hearing, the individual is found guilty of contempt, they may be punished with a fine not to exceed \$1000 or imprisonment not to exceed five days. CCP §1218(a). They may be ordered to pay the moving party’s attorney’s fees and costs. CCP §1218(a). If the contempt results from the individual’s failure to perform an act that is within their power to perform, they may be imprisoned until they have performed the act. CCP §1219(a).

Because the OSC hearing may result in depriving Defendant of her physical liberty, she has a due process right to court-appointed counsel if she demonstrates that she is financially unable to obtain counsel on her own. *Iraheta v. Superior Court* (1999) 70 Cal.App.4th 1500, 1503; *Lassiter v. Department of Social Services* (1981) 452 U.S. 18, 25; *Salas v. Cortez* (1979) 24 Cal.3d 22; *Conservatorship of Sides* (1989) 211 Cal.App.3d 1086, 1091-1092. The parties are ordered to attend today’s hearing prepared to set a date for an evidentiary hearing on the Order to Show Cause re Contempt. Defendant must also be prepared to address the issue of her eligibility for court-appointed counsel to represent her only at the OSC hearing.

PERRY VS. COUNTY OF SHASTA**CASE NUMBER: 26CV-0209982**

This matter is on calendar for hearing on Petitioner’s Motion for Stay of Enforcement. Upon review of the file, the Court notes that Petitioner attempted to file a Stipulation and Proposed Order staying enforcement on September 10, 2026. That Stipulation would moot the Motion for Stay. However, the clerk rejected the attempted filing because the Proposed Order was not lodged as a separate document as required by Local Rule 5.06. In the interest of judicial economy, the Court will continue hearing on this Motion again, to permit the parties to properly file their Stipulation and Order for the Court’s consideration.

Additionally, the Court notes that Petitioner has not filed and served their opening brief, which was due on September 7, 2026. **The parties are ordered to appear today to discuss the status of the case.**

RUPP VS. FCA US LLC, ET AL.**CASE NUMBER: 26CV-0210538**

Tentative Ruling on Demurrer: Defendant FCA US, LLC demurs to the First, Second, Third, Fourth, and Sixth Causes of Action of the Complaint filed by Plaintiff Bryan Rupp on June 23, 2025. Plaintiff opposes the demurrer.